TOWN OF WAREHAM

MEMORIAL TOWN HALL
54 MARION ROAD
WAREHAM, MA 02571

CONSERVATION COMMISSION
MINUTES – May 21, 2025

I. Call to order by the Chair

II. Roll Call

Present: Chairperson, Sandy Slavin,
Vice Chairperson, Kwame Bartie
Scott Soby, Associate Member
Mike Mercier, Member
Paulajean O'Neill, Member
Jessica Parr, Member

Motion: Member O'Neill motioned to appoint Kwame Bartie as Clerk for this evening. Seconded by Member Soby. **Vote:** 5-0-0.

Also present: Conservation agent, Christine Santos All parties are sworn in before testifying.

III. Public Hearings 6:00 PM
Request for Determination of Applicability (RDA)

1. **Sean Thompson, 25 Washington Dr – RDA 92 –** applicant is proposing to remove and replace a 12' x 14' deck in buffer zone to Coastal Beach and Land Subject to Coastal Storm Flowage.

Member Bartie read the legal advertisement in for the record.
Motion: Member Slavin motioned to open the hearing. Seconded by Member Mercier. **Vote:** 5-0-0.
Present before the board via Zoom: Dana Pickup, Carefree Homes
Via Zoom, Mr. Pickup reviewed the deck that will be replaced in the same location, same footprint. There were no questions.
Motion: Member Bartie motioned to close the hearing. Seconded by Member Mercier. **Vote**: 5-0-0.
Motion: Member Mercier motioned to approve as a negative two and negative 6 determination. Seconded by Member Bartie. **Vote:** 5-0-0.

2. **Susanne & Michael Scipione, 9 Eagle Way – RDA 93 –** applicant is proposing to add an additional 1' or so to the existing wall o the beach side, and existing ramp/sidewalk that leads into the house in buffer zone to Coastal Beach, buffer zone to Coastal Dune, and Land Subject to Coastal Storm Flowage.

Member Bartie read the legal advertisement in for the record.
Motion: Member O'Neill motioned to open the hearing. Seconded by Member Mercier.
Vote: 5-0-0.
Present: Michael Scipione and Susanne were present. Mr. Scipione explained the proposal for the existing wall to add a foot to the wall for extra protection to the house.

Chair Slavin advised that she and Susanne have been long-time garden club members and that will not affect her vote on the matter at hand.
Ms. Santos stated they met with the homeowners at the property for a discussion. Her recommendations were a negative 2 and a negative 6.
Motion: Member Mercier motioned to close the public hearing. Seconded by Member O'Neill.
Vote: 5-0-0.

Motion: Member Mercier motioned to approve as a negative 2 and negative 6 determination. Seconded by Member Bartie. **Vote:** 5-0-0.

3. **Casey Larson, 7 Dennis Land – RDA 94** – applicant is proposing to construct a 20x25 garage with a 12' wide concrete driveway and to install roof infiltration units and a French drain in Land Subject to Coastal Storm Flowage.

Member Bartie read the legal advertisement in for the record.
Motion: Member O'Neill motioned to open the hearing. Seconded by Member Mercier.
Vote: 5-0-0.
Present: Brian Grady, GAF Engineering and Mr. Larson
Mr. Grady reviewed the proposal for constructing a garage.
Ms. O'Neill asked about the run-off and asked if they would consider pervious material for the driveway.
Mr. Larson said he had considered it; however, he has low vehicles and it would be difficult to have previous material. He said any maintenance to the vehicles would occur within the garage.
Motion: Member Mercier motioned to close the hearing. Seconded by Member O'Neill.
Vote: 5-0-0.
Ms. Santos recommended a negative 2 and a negative 6 determination.
Motion: Member Mercier motioned to approve as a negative 2 and negative 6 determination. Seconded by Member O'Neill. **Vote:** 5-0-0.

Notice of Intents (NOI)

1. **Jeffrey Chrzanowski, 12 Pine Tree Dr – NOI 130 –** applicant is proposing to construct a sloped stone rip-rap sewall in buffer zone to Coastal bank buffer zone to salt marsh, buffer zone to Coastal Beach and Land Subject to Coastal Storm Flowage

Member Bartie read the legal advertisement in for the record.
Motion: Member O'Neill motioned to open the hearing. Seconded by Member Mercier.
Vote: 5-0-0.
Present: Dave Davignon, Schneider, Davignon & Leone
Mr. Davignon reviewed the project with the commission.
Board members asked questions if there stairs would be added, and Mr. Davignon explained.
A discussion took place regarding American beach grass. Mr. Davignon explained why they use the materials they do. Mr. Davignon explained the beach path with crushed shells between the beach grass and lawn. They discussed erosing control.
Motion: Member Bartie motioned to close the public hearing. Seconded by Member Mercier.
Vote: 5-0-0.
Ms. Santos recommended the standard order of conditions, with stockpiling being as far away from the resource area as practicable, and the shell crush path won't be replaced if it is lost; and reduce the amount of fertilizer being used.
Motion: Member Mercier moved the motion as recommended. Seconded by Member O'Neill.
Vote: 5-0-0.

2. **Mark Backstrom 35 Farmer's Lane – NOI 131** -applicant is proposing to consturt a 24'x14' shed and selectively clear vegetation in buffer zone to Borderling Vegetated Wetlands.

Member Bartie read the legal advertisement for the record.
Motion: Member Mercier motioned to open the hearing. Seconded by Member O'Neill.
Vote: 5-0-0.
Present before the board: H. Dani, civil engineer on the project with Mr. Backstrom
Mr. Dani reviewed the project to construct a shed behind the home, approximately 65' from the home, constructed on a gravel base outside of the 30' no-touch activity zone. He said the owner also wants to clear some of the brush area to have gardens; he said everything is outside of the 30' no touch activity zone. Mr. Dani said there is approximately 1,000 sq feet in back and 3,000 sq feet in front that trees and brush will be cleared.

Mr. Backstrom said he would like to do some selective clearing.
Dr. Soby read from the MGL that there is a 30' no activity zone; however, the law states there is a 100' restriction other than minor activities. He asked them to justify why this should be approved within this buffer zone.

Mr. Dani explained how he interpreted the law to state that work was allowed within the 100' buffer zone with the proper filings. He said there is minor grading and certainly a project within the buffer zone. He said that no matter where they put the shed, it would be within the 100' buffer at the property, and is why they kept it out of the 30' buffer to keep within the local bylaw.

A discussion on the tree clearing.
Mr. Backstrom explained that the backyard is where the most clearing is more important to this project. He said there is an intention to use the boulders. He said he would like to cut some of the vegetation and overgrowth, basic cleanup in the front, northeast corner, and he wouldn't have to clear the front.

Ms. Santos stated she thought it was a bit of trees that were requesting to be cleared, but she would be okay if they didn't have to clear the front, or selectively.
Motion: Member Bartie motioned to close the hearing. Seconded by Mr. Mercier. **Vote:** 5-0-0.
Ms. Santos recommended a Standard order of conditions, with no tree clearing to be done near the side of the road aside from selective clearing and invasive removal.
Motion: Member Bartie motioned to move as recommended. Seconded by Member O'Neill.
Vote: 5-0-0.

3. **Hayden Gallagher 24 Weaver St – NOI 132** – applicant is proposing to construct a single family dwelling, deck and perform associated grading in the buffer zone to Bordering Vegetated Wetlands

Member Bartie read the legal advertisement in for the record.
Member Bartie recused himself as an abutter to the property at 6:50 p.m.
Motion: Member Mercier motioned to open the hearing. Seconded by Member O'Neill.
Vote: 4-0-0.
Present before the board: Brian Grady, GAF Engineering
Mr. Grady reviewed the project for a single-family home and garage. He said a small portion of the house and deck are in the buffer zone. He said there is some tree clearing.
Ms. Santos asked that the erosion controls be expanded a little bit.
Motion: Member Parr motioned to close the hearing. Seconded by Member O'Neill.
Vote: 4-0-0.
Ms. Santos recommended the standard order of conditions with erosion control expanded a bit and drywells for the house roof run-off.
Motion: Member O'Neill moved the recommendation as the motion. Seconded by Member Parr.
Vote: 4-0-0.
Chair Slavin asked that an updated plan be sent in with the drywells and erosion control extension.

IV. Continued Public Hearings: 6:30 p.m.
Request for Determination of Applicability (RDA)

1. **Robert Comeau, 9 Fifteenth ST – RDA 63** – applicant is proposing to replace broken steps in buffer zone to Coastal Bank and buffer zone to Coastal Beach – no action; as they are waiting for the withdrawal in writing.

Notice of Intents (NOI)

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1. **Russel McKinnon, 28 Nelson St – NOI-104** – applicant is proposing to raze, relocate, and rebuild an existing house within, and in buffer zone to Bordering Vegetated Wetlands, Land Subject to Coastal Storm Flowage, and buffer zone to Salt Marsh. (prev continued to 5/21)

Present: Attorney Jillian Morton and Engineer, Jeff Youngquist, Outback Engineering
Attorney Morton reviewed the last time they met seeking to replace an existing structure on the same exact footprint with cantilevered decks and additional stairs.
Peer reviewer, Ecosystem Solutions had limited time to review revised plans but noted that maintaining the same footprint avoids classifying the work as new construction. The commission discussed definitions of "footprint" especially regarding cantilevered structures and stairs, with plans to receive a legal/building code opinion before their next meeting. Concerns were also raised about wetland alteration, lack of mitigation proposals and potential impacts on drainage and water table.
Motion: Member O'Neill motioned to continue to June 18, 2025. Seconded by Mr. Mercier.
Vote: 5-0-0.

2. **Safe Harbor Marina Onset Bay LLC, 3 Green St – NOI 127** – applicant is proposing to redevelop an existing full-service marina property, including the demolition and replacement with new construction of existing ship building/repair facility and Marine Building, new parking areas, improved stormwater management systems, associated grading, landscaping and site improvements in Coastal Bank, buffer zone to Coastal Beach and Salt Marsh, and Land Subject to Coastal Storm Flowage. Cont. 6/4.

3. **Wareham Lake Shores Improvement Association, 33 Wareham Lake Shores Dr-NOI 129** – applicant is proposing beach nourishment, and to revegetate an existing center path with coir logs, native shrubs and beach grass in Coastal Bank and Coastal Beach.

Present:
Chair Slavin confirmed they received a DEP File number. There were no additional questions by Commission members.
Motion: Member Bartie motioned to close the hearing. Seconded by Member Mercier.
Vote: 5-0-0.
Motion: Member Bartie motioned to approve with standard order of conditions. Seconded by Member Mercier. **Vote:** 5-0-0.

V. Amended Order of Condition Request

1. Ryan Vlaco, 72 B Burgess Point Rd – AOOC-6

Via Zoom, Brian Wallace with JC Engineering
Mr. Wallace requested approval for moving the retaining wall and associated pool and patio closer to the water; stating the pool size remains approximately the same but adopts a new shape with a splash-over feature to recirculate water.
The wall would move approximately 10.3 ft closer to the water but still maintain greater distance than original plans.
It was noted that the work has already begun without approval, resulting in a $200 fine.
Commission stated that erosion controls must be fully re-established and maintained.

Motion: Member O'Neill motioned to approve the amended order of condition request with conditions including the $200 fine and erosion control requirements. Seconded by Member Parr. **Vote:** 5-0-0.

VI. Extension Requests

VII. Certificate of Compliance Requests

1. **18 Sias Point Rd - SE 0076-984**

Motion: Member Parr motioned to issue the COC. Seconded by Member O'Neill. **Vote:** 5-0-0.

2. **2 Peyton Lane – SE 076-2850**

Motion: Member Parr motioned to issue the COC. Seconded by Member O'Neill. **Vote**: 5-0-0.

3. **2 Peyton Lane – SE 76-2794**

Motion: Member Parr motioned to issue the COC. Seconded by Member O'Neill. **Vote: 5-0-0.**

4. **16 Fisherman Cove Rd – SE 076-2116**

Motion: Member Parr motioned to issue the COC. Seconded by Member O'Neill. **Vote: 5-0-0.**

5. **16 Fisherman Cove Rd – SE 076-2764**

Motion: Member Parr motioned to issue the COC. Seconded by Member O'Neill. **Vote: 5-0-0.**

6. **16 Fisherman Cove Rd – SE076-2801**

Motion: Member Parr motioned to issue the COC. Seconded by Member O'Neill. **Vote: 5-0-0.**

7. **71 Jefferson Shores Rd – SE 076-2852**

Motion: Member Parr motioned to issue the COC. Seconded by Member O'Neill. **Vote:** 5-0-0.

VIII. Review of Enforcements

IX. Continued Enforcements

X. Report of the Conservation Agent

1. **Administrative Approvals**
2. **Workshop – Permits – Certificates of Compliance (C)**

XI. Consent Agenda

1. **Review and approve minutes** – April 2, 2025

Motion: Member O'Neill motioned to approve with amendedments already submitted. Seconded by Member Mercier. **Vote:** 5-0-0.

2. **Appointments, Interviews and Reappointments**

3. **Maple Springs Appeal**

Brief discussion on Maple Springs Appeal. Chair Slavin said they didn't have a stand on this project. She asked if the Planning Board was able to approve if the Conservation Commission didn't approve. Mr. Faherty stated it if was a superceeded order from the state than the Planning Board could approve it. He explained the superceeding order from the state.

Adjournment:

Member Bartie motioned to adjourn. Seconded by Member Mercier. The motion was passed unanimously and the meeting adjourned at 7:40pm.

Michael J. Mercier 5/20/26